

Contextual Elements of Crimes against Humanity

A Comparative Analysis of the ICTY, ICTR and ICC

Bachelor Thesis Presentation
International Legal Studies

Carla Camilla Pattera
University of Vienna

Research Question

How do the contextual elements of crimes against humanity differ under the legal frameworks of the ICTY, ICTR and ICC?

This presentation examines differences in statutory formulation, judicial interpretation and the final legal meaning of crimes against humanity across three central regimes of international criminal law.

Central Argument

The principal differences between the ICTY, ICTR and ICC lie primarily at the statutory level, whereas the authoritative interpretation of the contextual elements reveals a far greater degree of substantive convergence than the statutory wording initially suggests.

Methodological Frame

1. Statutory Text

- Art. 5 ICTY Statute
- Art. 3 ICTR Statute
- Art. 7 Rome Statute

The first level identifies which contextual elements are expressly included in the relevant legal instruments.

2. Interpretation

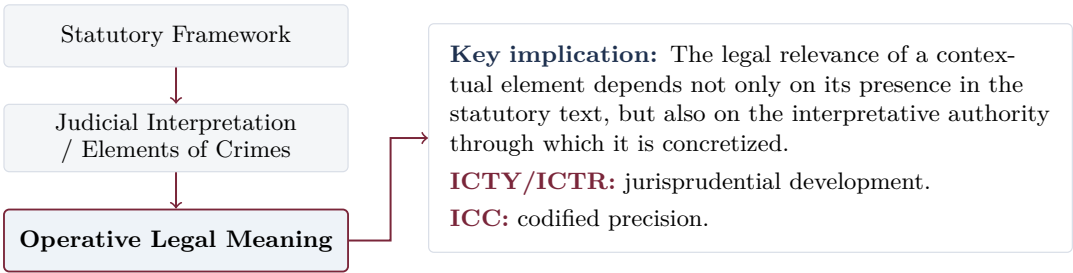
- ICC Elements of Crimes
- ICTY case law
- ICTR case law

The second level asks how statutory terms were concretized through authoritative interpretative documents and judicial reasoning.

3. Comparison

The third level establishes the final legal meaning of each contextual element and compares the legal understanding of each contextual element across the three frameworks.

Normative Architecture



Comparative Doctrinal Framework

Contextual Element	ICTY	ICTR	ICC
Attack directed against a civilian population	✔ Statutory Required by Art. 5 ICTY Statute.	✔ Statutory Required by Art. 3 ICTR Statute.	✔ Statutory Required by Art. 7 Rome Statute.
Widespread or systematic attack	⚖️ Jurisprudential Not expressly stated in Art. 5, but recognized by jurisprudence as a contextual element rooted in customary international law.	✔ Statutory Expressly included in Art. 3 ICTR Statute.	✔ Statutory Expressly included in Art. 7 Rome Statute.
Policy or plan	🔍 Evidential Not an independent legal element; relevant to proving the nature of the attack.	🔍 Evidential Not an independent legal element; relevant as evidence.	✔ Statutory Art. 7(2)(a) requires a State or organizational policy.
Armed conflict nexus	✔ Statutory Art. 5 requires commission in armed conflict, whether international or internal.	❌ Not required No armed conflict nexus in Art. 3 ICTR Statute.	❌ Not required No armed conflict nexus in Art. 7 Rome Statute.
Discriminatory grounds	❌ Not required Not generally required, except for persecution.	✔ Statutory Art. 3 restricts jurisdiction to attacks on national, political, ethnic, racial or religious grounds.	❌ Not required No general discriminatory grounds requirement.

Comparative Doctrinal Findings

ICTY Distinctive feature: armed conflict nexus. Unlike the ICTR and ICC Statutes, Article 5 does not expressly require that the attack be widespread or systematic. This requirement was subsequently recognised through ICTY jurisprudence as part of customary international law. The principal distinguishing feature of the ICTY Statute is the requirement of an armed conflict nexus.	ICTR Distinctive feature: discriminatory grounds. The ICTR Statute expressly includes the widespread or systematic requirement and omits any armed conflict nexus. Its defining limitation is the requirement that the attack be committed on national, political, ethnic, racial or religious grounds.	ICC Distinctive feature: policy element. The ICC framework is the most codified. Article 7 Rome Statute is supplemented by the Elements of Crimes, which provide an official interpretative instrument pursuant to Article 9. The ICC introduces the policy element, requiring an attack to be pursuant to, or in furtherance of a state or organizational policy.
---	---	--

Key Doctrinal Clarifications

Element	Meaning
Widespread or systematic	The requirement is alternative rather than cumulative. “Widespread” refers primarily to scale, frequency and multiplicity of victims; “systematic” refers to organised, patterned and non-random conduct.
Attack	The attack need not be a military attack. It denotes a course of conduct involving multiple acts of violence or mistreatment directed against a civilian population.
Civilian population	The civilian population must be the primary object of the attack. The presence of some non-civilians does not deprive the population of its civilian character.
Policy element	Under ICTY and ICTR jurisprudence, policy is evidentially relevant but not a separate legal element. Under the Rome Statute, it is expressly required by Art. 7(2)(a).
Armed conflict nexus	The armed conflict nexus limits the jurisdiction of the ICTY beyond the requirements of customary international law. The ICTR and ICC frameworks recognize crimes against humanity as autonomous from armed conflict.
Discriminatory grounds	The ICTR requirement is best understood as a jurisdictional limitation tailored to the Rwandan situation. It does not represent a general customary-law requirement for all crimes against humanity.

Sources of Normativity

Ad hoc Tribunals ICTY and ICTR case law is not formally binding in the manner of a common-law system. Nevertheless, leading judgments, especially Appeals Chamber decisions, carry significant persuasive authority and shaped the interpretation of crimes against humanity.	International Criminal Court The ICC Elements of Crimes possess a stronger formal status than ICTY or ICTR case law because they were adopted pursuant to Article 9 Rome Statute and assist the Court in interpreting and applying the crimes.
--	---

Selected Leading Authorities

Authority	Function in the Comparative Analysis
<i>Tadić</i>	Clarifies the ICTY armed conflict nexus and rejects discriminatory intent as a general requirement for crimes against humanity.
<i>Akayesu</i>	Central ICTR authority on discriminatory grounds and the interpretation of attacks against a civilian population.
<i>Kunarac</i>	Leading ICTY authority on widespread or systematic attack, civilian population and the non-necessity of a policy or plan.
<i>Blaškić</i>	Important for identifying indicators of systematic attacks and further refining the concepts of widespread and systematic attacks.
ICC Elements of Crimes	Official interpretative instrument under Article 9 Rome Statute; clarifies the application of Article 7.
Kenya Situation Decision	Leading ICC authority on the policy requirement, the concept of "organization" under Article 7(2)(a), and the interpretation of several contextual elements.

Concluding Observation

Although the ICTY, ICTR and ICC differ considerably in the statutory formulation of crimes against humanity, their substantive interpretation has converged to a significant extent. The principal differences lie in the normative source of the contextual elements: the ICTY relies more heavily on judicial interpretation, the ICTR incorporates jurisdictional limitations tailored to its mandate, and the ICC offers the most codified framework through Article 7 Rome Statute and the Elements of Crimes.
The development of crimes against humanity reflects a gradual movement from jurisprudential construction toward codified precision, while preserving the doctrinal foundations established by the ad hoc tribunals.

Selected References

International Instruments

Statute of the International Criminal Tribunal for the former Yugoslavia (ICTY), annexed to UNSC Resolution 827 (1993);
Statute of the International Criminal Tribunal for Rwanda (ICTR), annexed to UNSC Resolution 955 (1994);
Rome Statute of the International Criminal Court, 17 July 1998, 2187 UNTS 90;
Assembly of States Parties, *Elements of Crimes*, ICC-ASP/1/3 (2002).

United Nations Documents

United Nations Secretary-General, Report of the Secretary-General Pursuant to Paragraph 2 of Security Council Resolution 808 (1993), UN Doc S/25704 (3 May 1993);
International Law Commission, Draft Code of Crimes against the Peace and Security of Mankind with Commentaries (1996).

ICTY case law

Prosecutor v Duško Tadić, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, Case No IT-94-1-AR72 (2 October 1995);
Prosecutor v Duško Tadić, Appeals Judgment, Case No IT-94-1-A (15 July 1999);
Prosecutor v Kunarac, Kovač and Vuković, Trial Judgment, Case No IT-96-23-T (22 February 2001);
Prosecutor v Kunarac, Kovač and Vuković, Appeals Judgment, Case No IT-96-23 (12 June 2002);
Prosecutor v Blaškić, Trial Judgment, Case No IT-95-14-T (3 March 2000);
Prosecutor v Blaškić, Appeals Judgment, Case No IT-95-14-A (29 July 2004);
Prosecutor v Martić, Appeals Judgment, Case No IT-95-11-A (8 October 2008);
Prosecutor v Šešelj, Decision on Prosecution's Interlocutory Appeal Against Trial Chamber's Decision on Jurisdiction, Case No IT-03-67-AR72.2 (2006).

ICTR case law

Prosecutor v Akayesu, Trial Judgment, Case No ICTR-96-4-T (2 September 1998);
Prosecutor v Akayesu, Appeals Judgment, Case No ICTR-96-4-A (1 June 2001);
Prosecutor v Kayishema and Ruzindana, Trial Judgment, Case No ICTR-95-1-T (21 May 1999);
Prosecutor v Semanza, Trial Judgment, Case No ICTR-97-20-T (15 May 2003);
Prosecutor v Semanza, Appeals Judgment, Case No ICTR-97-20-A (20 May 2005);
Prosecutor v Nahimana et al., Appeals Judgment, Case No ICTR-99-52-A (28 November 2007);
Prosecutor v Kajelijeli, Trial Judgment, Case No ICTR-98-44A-T (1 December 2003).

ICC case law

Situation in the Republic of Kenya, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation, ICC-01/09-19-Corr (31 March 2010)

Selected Literature

Cassese, Antonio, *International Criminal Law* (2nd edn, Oxford University Press 2008);
Werle, Gerhard and Florian Jessberger, *Principles of International Criminal Law* (4th edn, Oxford University Press 2020).